

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #01	CCRB Case #: 201802673	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/30/2018 1:15 AM	Location of Incident: East 21st Street & Avenue N	18 Mo. SOL 7/30/2019	Precinct: 70		
Date/Time CV Reported Thu, 04/05/2018 4:43 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 04/05/2018 4:43 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Raymond Buono	02800	954578	070 PCT
2. POM Stephen Proscia	14516	955348	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Smith	11827	955504	070 PCT
2. POM Brian Zupo	19878	955699	070 PCT
3. POM Edrington Maynard	18108	954110	070 PCT
4. POM Kyle Brown	16513	957405	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Raymond Buono	Abuse: Police Officer Raymond Buono stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Stephen Proscia	Abuse: Police Officer Stephen Proscia stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Raymond Buono	Abuse: Police Officer Raymond Buono questioned § 87(2)(b)	C . Unsubstantiated
D . POM Raymond Buono	Abuse: Police Officer Raymond Buono searched the vehicle in which § 87(2)(b) was an occupant.	D . Exonerated
E . POM Stephen Proscia	Abuse: Police Officer Stephen Proscia refused to provide his name and shield number to § 87(2)(b)	E . Unsubstantiated

Case Summary

On April 5, 2018, § 87(2)(b) filed this complaint with the CCRB via the on-line website.

On January 30, 2018, at approximately 1:15 a.m., PO Raymond Buono and PO Stephen Proscia of the 70th Precinct pulled over § 87(2)(b) on East 21st Street near Avenue N in Brooklyn (**Allegations A and B: Abuse of Authority, exonerated**). PO Buono allegedly asked § 87(2)(b) if he had a gun in the car (**Allegation C: Abuse of Authority, unsubstantiated**). PO Buono searched § 87(2)(b)'s vehicle and found marijuana and a folding knife (**Allegation D: Abuse of Authority, exonerated**). § 87(2)(b) allegedly asked PO Proscia for his name and shield number, and PO Proscia allegedly did not respond (**Allegation E: Abuse of Authority, unsubstantiated**). The officers transported § 87(2)(b) to the 70th Precinct stationhouse, from which he was released with a Desk Appearance Ticket. § 87(2)(b) was charged § 87(2)(a) 160.50. All of his charges have since been dropped (Board Review 01).

There is no video footage in this case. § 87(2)(g).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Raymond Buono stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Stephen Proscia stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) (Board Review 02) was looking for parking when an unmarked van pulled him over. § 87(2)(b) did not know why he was pulled over, and the officers did not tell him that he had failed to signal when he turned onto East 21st Street. § 87(2)(b) did not believe he failed to signal. § 87(2)(b) did not learn that he was pulled over for allegedly failing to signal until May 10, 2018, when he received an e-mail from Sgt. Steven Silverman of Patrol Borough Brooklyn South (PBBS) Investigations informing him that PBBS's investigation into the incident had been concluded (Board Review 03).

Both PO Buono (Board Review 04) and PO Proscia (Board Review 05), stated that they pulled § 87(2)(b) over for failing to use his turn signal when he turned either onto Avenue N or onto East 21st Street. PO Buono also noted that § 87(2)(b) had stopped his vehicle approximately halfway into a crosswalk on Avenue N before turning onto East 21st Street. They said they mutually decided to pull § 87(2)(b) over. In pulling § 87(2)(b) over, PO Proscia intended to see why § 87(2)(b) failed to signal, and PO Buono intended to see whether § 87(2)(b) had anything illegal in his vehicle. PO Buono stated that he, PO Proscia, and PO Daniel Smith, § 87(2)(b)'s arresting officer, decided together to not issue § 87(2)(b) a VTL summons for failing to signal because it was subsequently discovered that § 87(2)(b) had contraband in his vehicle. PO Proscia stated he did not know why a VTL summons was not issued.

§ 87(2)(b)'s handwritten Arrest Report (Board Review 06), prepared by PO Smith, revealed that § 87(2)(b) was § 87(2)(a) 160.50.

New York State Vehicle and Traffic Law (VTL) section 1163, subsection (d) states, “The signals provided for in section eleven hundred sixty-four [signals by hand and arm or signal lamps] shall be used to indicate an intention to turn.” VTL section 1163, subsection (a) states, “No person shall so turn any vehicle without giving an appropriate signal.” See Board Review 07.

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation (C) Abuse of Authority: Police Officer Raymond Buono questioned § 87(2)(b)

§ 87(2)(b) stated that after he pulled over, PO Buono approached his window and asked him if he had any guns in the car. § 87(2)(b) told PO Buono that he did not have any weapons, and PO Buono allegedly replied, “No, you have guns in the car,” and then ordered him to step out of the vehicle.

PO Buono identified himself as the officer who approached § 87(2)(b)'s window. He stated that he did not specifically inquire about guns in § 87(2)(b)'s vehicle and that he had no specific reason to believe that § 87(2)(b) had a gun in his car.

PO Proscia stated that PO Buono and § 87(2)(b) had a brief conversation through the driver's window, but he was not sure what this conversation was about, and PO Buono did not inform him that he suspected that § 87(2)(b) had a gun. PO Proscia was unaware of PO Buono asking § 87(2)(b) if he had a gun in the car or telling § 87(2)(b) that he suspected he had a gun. PO Proscia was unaware of PO Buono discussing guns with § 87(2)(b) at any point. PO Smith and his partner, PO Brian Zupo, had not yet arrived on scene at this moment.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation (D) Abuse of Authority: Police Officer Raymond Buono searched the vehicle in which § 87(2)(b) **was an occupant.**

§ 87(2)(b) stated that while he was seated in his vehicle, PO Buono told him that he smelled like marijuana. § 87(2)(b) acknowledged that he had fewer than three grams of marijuana in a grinder that was sitting in a compartment in the driver's door, and he denied having any marijuana on his person. PO Buono asked § 87(2)(b) if he had been smoking marijuana, and § 87(2)(b) said he had not. However, § 87(2)(b) stated that PO Buono did not ask him if he had any marijuana. § 87(2)(b) denied confessing to having marijuana before his vehicle was searched. PO Buono ordered § 87(2)(b) to step out of his vehicle, and § 87(2)(b) complied. When § 87(2)(b) opened his door, the officers found the grinder in the door. PO Buono proceeded to search § 87(2)(b)'s car and found a folding knife with a four- to five-inch blade in the glove compartment.

PO Buono stated that as soon as he approached § 87(2)(b)'s vehicle, he smelled a strong odor of marijuana emanating from this vehicle. PO Buono recognized the odor as marijuana from

his training and experience, and he stated that he has been involved in over 50 marijuana-related arrests and summonses. PO Buono told § 87(2)(b) that he smelled marijuana and asked him if he had any. § 87(2)(b) said he had marijuana in the driver's door. PO Buono looked into the vehicle and saw the marijuana in plain view in a translucent plastic container similar to a pill bottle. PO Buono opened § 87(2)(b)'s door, retrieved the marijuana from the door, and removed § 87(2)(b) from the vehicle. PO Buono stated that § 87(2)(b) then told him that he had more marijuana in his jacket pocket. PO Buono retrieved this marijuana, which was in a similar container. PO Buono then searched § 87(2)(b)'s vehicle because it had contained marijuana, and he found the knife in the glove compartment. The odor of marijuana in the vehicle was weaker but still faintly present. PO Proscia § 87(2)(g) did not recall how § 87(2)(b) responded to PO Buono when he said he smelled marijuana.

§ 87(2)(a) 160.50

According to People v. Badger (52 A.D.3d 231, 2008) and People v. Smith (66 A.D.3d 514, 2009), the odor of marijuana emanating from an automobile independently establishes probable cause to search the vehicle and its occupants. See Board Review 07.

§ 87(2)(g)

it is recommended that **Allegation D** be closed as **exonerated**.

Allegation (E) Abuse of Authority: Police Officer Stephen Proscia refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) stated that while PO Buono was searching his vehicle, he asked PO Proscia for his name and shield number two to three times in rapid succession, and PO Proscia looked away from him and did not respond. At the time, PO Proscia was approximately one arm's length away from § 87(2)(b) and was not doing anything, and § 87(2)(b) stated that there was "no way" that PO Proscia did not hear him. § 87(2)(b) stated that no other officers were at the scene at this moment.

PO Proscia identified himself as the officer who stood with § 87(2)(b) at the rear of his vehicle while PO Buono searched the vehicle. PO Proscia did not recall § 87(2)(b) requesting his name or shield number, and he stated that he did not refuse to provide this information to § 87(2)(b).

PO Buono stated that he was he did not hear § 87(2)(b) ask any officer for his name or shield number, and he was unable to hear any conversation between § 87(2)(b) and PO Proscia while he was searching the car.

§ 87(2)(g)

. It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 09).
- PO Raymond Buono has been a member-of-service for four years and has been a subject in two additional CCRB complaints and four additional allegations, none of which were substantiated. § 87(2)(g)
- PO Stephen Proscia has been a member-of-service for four years and this is the first CCRB complaint to which he has been a subject (Board Review 10).

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 22, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 11).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 01

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date